

CV-25-005279 GONZALEZ, MARGARITA vs EVERBRIGHT LLC – Plaintiff’s Motion to Compel Further Responses to Special Interrogatories Set Two to Empower Solar Inc – CONTINUED, on the Court’s own motion to October 29, 2026 at 8:30 a.m. in Department 23.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: The Court notes that the papers acknowledge that potential alternative procedures and/or notice to affected customers were not fully explored by counsel during their previous meet and confer communications. Additionally, the Court notes that the parties submitted a stipulated protective order regarding the handling of confidential information after this motion was filed, which appears to demonstrate their ability to work together to resolve issues informally. Therefore, the Court believes that the potential exists for the parties to informally resolve the issues presented herein if genuine efforts to meet and confer are continued in good faith. Therefore, the hearing is continued, as above, for that purpose, and the parties are ordered to meet and confer in person or by online video conference to discuss the issues herein. The parties are further ordered to submit a Joint Status Statement by October 20, 2026, describing their efforts to meet-and-confer and any resolution or narrowing of the issues they were able to achieve. The parties are reminded that discovery is intended to be self-executing, and good faith communication should involve serious efforts at informal negotiation and resolution, not mere bickering between counsel. (See, e.g., *Townsend v. Superior Court (EMC Mortgage Co.)* (1998) 61 Cal.App.4th 1431; *Obregon v. Superior Court (Cimm’s, Inc.)* (1998) 67 Cal.App.4th 424.) Therefore, the Court expects the parties to make genuine efforts to informally resolve their differences with due civility to one another and to demonstrate their best efforts in this regard.

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